



Income Tax Department

Ministry of Finance, Government of India

⁴⁷[**Merger of charitable trusts or institutions in certain cases.**

12AC. Where any trust or institution registered under section 12AB or approved under sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via) of clause (23C) of section 10, as the case may be, merges with another trust or institution, the provisions of Chapter XII-EB shall not apply if—

- (a) the other trust or institution has same or similar objects;
- (b) the other trust or institution is registered under section 12AA or section 12AB or approved under sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via) of clause (23C) of section 10, as the case may be; and
- (c) the said merger fulfils such conditions as may be prescribed.]

47. Ins. by Act No. 15 of 2024, w.e.f. 1-4-2025.

